

22. S-PR-0014021 In Re the Judy Malavazos Trust

It is recommended the petition to determine trust property be denied.

Transfer of real property to a trust or creation of a trust for real property requires a writing. See Prob.C. § 15200(a)–(b); see also *Estate of Heggstad* (1993) 16 Cal.App.4th 943; *Ukkestad v. RBS Asset Finance Inc.* (2015) 235 Cal.App.4th 156. Petitioner offers no writing by decedent settlor establishing describing the property; because it is not described within the trust, the requested relief falls outside the reach of *Heggstad*.

Nor is relief available under *Ukkestad*. In *Ukkestad*, the court determined that an all-real-property funding clause can satisfy the statute of frauds to create a trust in real property not identified in the writing but which can be defined by extrinsic evidence such as real property records. *Ukkestad, supra*, 235 Cal.App.4th at 162–163. However, the trust provision in *Ukkestad* "assigned the ownership of all of [settlor's] real property to the trustees of the Trust *effective immediately*." *Id.* at 159 (emphasis added). *Ukkestad* did not involve after-acquired property and so does not hold that property acquired contrary to the trust after its execution is or automatically becomes trust property. Settlor acquired the subject property long after the trust was executed; no public records or other evidence at the time the trust was executed could have supplied an identification of the property as a trust asset.

Relief also cannot be granted under the pourover will: the will has no effect until probated and, when probated, requires estate administration. "In the absence of any transfer to [a] trust *prior to* [decedent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280–281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

23. S-PR-0014025 In Re the Estate of Zhiry, Vasily

Missing age(s) of children of decedent (see ¶ 9 / Attachment 9).

Missing Attachment 7b (survivor's community property interest to be confirmed to her). See Petition ¶ 1b.

It is recommended the petition be denied or granted only in part. Petitioner appears to allege the subject property was the separate property of decedent, and that

decedent left 9 surviving children. Under Prob.C. § 6401(c)(3)(A), petitioner's intestate share is limited to 1/3 of the property.